

PDPA Applicability Checklist (Firm Template)

Before advising a client on a data-handling engagement, confirm whether the Personal Data Protection Act 2012 applies:

1. Is the data being handled by an individual acting in a personal or domestic capacity? If so, the engagement is exempt.
2. Is the data being handled by an employee acting in the course of his employment with an organisation? If so, the engagement is exempt.
3. Is the data being handled by a public agency? If so, the engagement is exempt.
4. Is the data being handled by a data intermediary under a written contract? If so, the engagement is exempt from Parts III to VI (except where the contract requires otherwise).

These exemptions are set out in section 4 of the Act.